

INDUSTRIAL COURT OF QUEENSLAND

Workplace Health and Safety Act 1995 – s. 164(3) – appeal against decision of industrial magistrate

Gavin Scott Wesche AND Vancrete Pty Ltd (No. 2) (No. C72 of 2004)

PRESIDENT HALL

10 March 2005

DECISION

By a decision now reported at 178 QGIG 149, I dismissed an appeal against the decision of the Industrial Magistrate dismissing a complaint against Vancrete Pty Ltd for breach of s. 24 of the *Workplace Health and Safety Act 1995*. Vancrete Pty Ltd now seeks costs.

It is common ground that the power to award costs is that vested by s. 335 of the *Industrial Relations Act 1999*. The issue is whether the power has been triggered. In my view the power has been enlivened. The case was objectively recognisable as one which could not succeed. The evidence was such that the Industrial Magistrate's decision was not merely open to His Honour but inevitable.

The Appellant is not a self-represented and impecunious litigant. He is a public officer acting as such. The discretion to award costs having arisen, there is no reason for declining to make an order.

I order that the Appellant pay to the Respondent the costs of and incidental to the appeal to be assessed, if need be, by the Industrial Registrar on the basis that the appeal was a Supreme Court matter.

Dated 10 March 2005.

D.R. HALL, President.

Appearances:

Ms J. Cameron directly instructed by the Division of Workplace Health and Safety for the Appellant.

Mr M. Johnston instructed by Macrossan & Amiet Solicitors, for Vancrete Pty Ltd.

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